

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: **Brazil**

Organization or entity responsible for the preparation of the report: **Ministry of Education**

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ **X - Yes**

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

→ *the obstacles, whether legal, institutional, political or practical*

→ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

→

☐ No, not considering ratification in the near future. Please explain why:

☐

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☐ **X - No, please briefly explain the difficulties encountered:**

☐

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

X - Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☒ Other:

Affirmative action laws and policies

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of pupils to educational institutions*
- *Non-differential treatment, including of foreign nationals resident in your country*

→

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☒ Other:

Affirmative action laws and policies

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

For issues related to target 4.1, see item 2.2

For issues related to target 4.b see item 2.3

1. Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|--|
| ☐ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☐ Adapting education infrastructure |
| ☐ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ☐ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education |
| ☐ Providing re-entry programmes for young mothers | ☐ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☐ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

2.

3.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes X No ☐

Please provide reference to the relevant laws and provisions:

LAW N°10.406 OF JANUARY 10th 2002 - Article 1517

LAW N°13.811 OF MARCH 12th 2019

According to the Brazilian Civil Code:

- Civil marriage is prohibited in Brazil for children under the age of 16.
- A man and a woman of 16 years old are allowed to get married, with the permission of both parents, or their legal representatives, until they reach the 18 years of age.
- Marriage is allowed in Brazil for individuals who have reached the civil age of 18.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country? **YES**

X Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Registration is compulsory for children over 4 years of age. The provision of education service is also compulsory for 0 to 3 years old children, however, for this age period the registration is optional for the family of the child.

X Pre-primary education is free of charge for all: Please provide the duration:

The entire duration. This stage of education is offered in i) - nurseries/daycare, for children up to three years old and ii) - pre-schools, for children from 4 (four) to 5 (five) years old.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

⁷

Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

The laws that regulate the provision of Early Childhood Education are: the National Education Guidelines and Framework Law (Lei de Diretrizes e Bases da Educação - LDB - 1996) - Law nº 9.394/96; the National Curricular Guidelines for Early Childhood Education; and the National Education Plan (Plano Nacional de Educação - PNE) - Law nº 13.005/14.

In addition, the Brazilian Federal Constitution assures early childhood education, the first stage of basic education, as a duty of the State, its purpose being the integral development of the child from birth to 5 (five) years old, in its physical, psychological, intellectual and social aspects, complementing the action of the family and community in this regard.

The main challenge for the government is the lack of vacancies, especially for children from 0 to 3 year old. The National Institute of Educational Studies and Research Anísio Teixeira (Instituto Nacional de Estudos e Pesquisas Educacionais - INEP), has to publish every two years, among its many legal duties, studies to assess the evolution of the achievement of the goals set in the National Education Plan (Plano Nacional de Educação – PNE). According to the data in the Report of the 3rd Monitoring Cycle of PNE's Targets, published this year, the enrolment in nursery/daycare correspond to 32% (of the children from 0 to 3 years old) and the enrolment in pre-schools correspond to 94% (of the children from 4 to 5 years old).

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ **X - Yes** ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The article 4 of LAW Nº9.394 OF DECEMBER 20TH 1996 (National Education Guidelines and Framework Law - Lei de Diretrizes e Bases da Educação/LDB) and the LAW Nº12.796 OF APRIL 4TH 2013 establish that basic education is compulsory and free of charge from 4 to 17 years old (therefore for the entire period of primary and secondary education).

- Is primary education available free of charge to all?

☐ **X - Yes:** Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

The article 4 of LAW N°9.394 of DECEMBER 20th 1996 (National Education Guidelines and Framework Law - Lei de Diretrizes e Bases da Educação/LDB) and the LAW N° 12.796 of APRIL 4th 2013 establish that basic education is compulsory and free of charge from 4 to 17 years old (therefore for the entire period of primary and secondary education).

The National Textbook Programme (Programa Nacional do Livro Didático - PNLD - Decree N° 9.099 of July 18th 2017), implemented by the Brazilian Ministry of Education, aims at evaluating and making available for Brazilian public schools didactic, pedagogic and literary books, among other materials to support educational practice, on a systematic, regular and free of charge basis (non-profit community, denominational or philanthropic institutions in partnerships with the government may also benefit from the programme).

The acquisition and distribution of textbooks consider the possibility of including other materials to support educational practice, in addition to didactic and literary books: pedagogical titles, educational software and games, materials for learning reinforcement, for training and school management, among others. Within this material it is given consideration to the necessary adaptations for the accessibility of students and teachers with disabilities, in compliance with Law n°13.146/15 that established the Statute of the Person with Disability.

In 2016, around 150 million books were distributed to 31 million students under the National Textbook Programme (PNLD). In 2017, 154 million books were also delivered to 31 million students. In 2018, the Programme distributed 144,2 million copies: to 119 000 schools covering early childhood education and first years of primary education; to 48 000 schools covering the last years of primary education; and to 20 000 schools covering secondary education. In 2019, about 172,6 textbooks were delivered to over 123 000 schools. Finally, for the beginning of this school year, 2020, more than 123 000 schools received more than 172 million copies (more than 28 000 books for early childhood education, 71,8 million books for the early years of primary education, 80,5 million books for the final years of primary education and 20,2 million copies for secondary education), benefiting about 32 million learners.

Moreover, concerning the government's coverage of direct and indirect costs in education, for all stages of basic education, the National Fund for Educational Development (FNDE) of the Brazilian Ministry of Education (MEC) implements the National School Feeding Programme (Programa Nacional de Alimentação Escolar - PNAE), as well as the National School Transport Programme (Programa Nacional de Transporte Escolar - PNATE). Each year, from 2016 to 2020, the National School Feeding Programme has benefited from 40 to 41 million students and through the National School Transport Programme around 4.3 to 4.4 million students were transported to school and back from school.

- ☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

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Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ **X - Yes**: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

The article 4 of LAW N°9.394 of DECEMBER 20th 1996 (National Education Guidelines and Framework Law - Lei de Diretrizes e Bases da Educação/LDB) and the LAW N° 12.796 of APRIL 4th 2013 establish that basic education is compulsory and free of charge from 4 to 17 years old (therefore for the entire period of primary and secondary education).

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- ☐ No: What are the measures your government intends to take to ensure free secondary education?

- ☐

- Is secondary education (middle/high) compulsory in your country?

X - Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

The article 4 of LAW N°9.394 of DECEMBER 20th 1996 (National Education Guidelines and Framework Law - Lei de Diretrizes e Bases da Educação/LDB) and the LAW N° 12.796 of APRIL 4th 2013 establish that basic education is compulsory and free of charge from 4 to 17 years old (therefore for the entire period of primary and secondary education).

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes – X ☒ No ☐

- Please provide reference to the relevant laws and provisions:

People under 16 years of age are forbidden to have a work, except in the condition of apprentice from 14 years of age, therefore, by means of an Apprenticeship Contract, as established in article 7, subsection XXXIII, of the Federal Constitution and Art. 428 of the Consolidation of Labor Laws (CLT - Decree-Law N°5452/42).

The Federal Constitution and CLT also prohibit nocturnal (between 22h and 5h), dangerous and unhealthy labor environment for workers under 18 years of age. They allow, from 16 years old until 18 years of age, technical or administrative work, as long as it is performed outside the areas of risk to health and safety, considering their labor activities are not detrimental to their education and their physical, psychological, social and moral development.

It is worth mentioning that Art. 427 of the CLT determines that every employer of a worker under 18 years old are obliged to guarantee the time necessary for the person still at basic school age to attend classes. The person also has the right to have their work vacations coincided to their school vacation period.

1. Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training

☒ Policies and programmes aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☒ Other:

Affirmative action laws and policies

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

→ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

→ *Non-differential treatment, including of foreign students*

⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁰ See: Article/Paragraph 1(1).

According to the Federal Constitution of 1988, higher education is one of the duties of the State, involving "access to the highest levels of learning, research and artistic creation, according to the capacity of each one" (Art. 208, V). Non-discrimination in the admission of students to educational institutions at all levels, is a principle which governs the entire legislation that deals with educational issues in Brazil.

Inclusive and non-discriminatory policies for all types of educational institutions are compulsory. The Brazilian legal system offers the conditions for the judicial system to strictly judge cases of discrimination in access to education.

From a gender perspective, an average of 55% of higher education admissions were accounted for women, and 59% of the people concluding a higher education course are women as well. Data from the decennial population censuses indicate that the reversion of the gender gap in the completion of higher education occurred in Brazil in the 1970's.

Ethnic minorities, people with disabilities and low-income families are still under-represented in higher education in Brazil, but affirmative action policies at public universities, as well as federal student assistance programmes in public and private higher education institutions have focused on these groups and have been changing over the years the composition of higher education students in Brazil.

In the public sector, affirmative actions were first implemented by a public university in Brazil in 2002, usually in the form of reservation of vacancies for students from ethnic minorities, from low-income families or having studied in public secondary schools. In 2008, more than two-thirds of Brazilian federal universities and many state universities adopted some kind of affirmative action.

In 2012, Law n° 12.711 of August 29th (amended by Law n°13.409 of December 28th, 2016), required all federal institutions of higher education and federal institutions of technical education to reserve 50% of their admissions to students that have attended their entire secondary education in public school, considering specific proportions, under the provisions of the law, for low income family students, self-declared black, "pardos", and indigenous individuals, as well as and persons with disabilities.

In 2018, 6.1% of total registrations in higher education institutions were done by students benefiting from the above mentioned vacancy reservation policy. In this respect, affirmative action measures are specially significant in public higher education institutions, accounting for 25% of the registrations.

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- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

☒ Higher education is generally free of charge

☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

Regarding the government efforts deployed to ensure that higher education is equally accessible to all on the basis of individual capacity and is available free of charge, the Higher Education Secretariat (SESu) of the Brazilian Ministry of Education (MEC) reports that a hybrid model of higher education is adopted in Brazil: free of charge higher education offered by public universities, which cover 25% of total undergraduate programme registrations; and for the 75% of the undergraduate registrations left, which are covered by the private sector, a significative system of scholarships and subsidized educational credit is applied. The private sector has grown over the last decades and is accountable for 3 out of 4 undergraduate registrations in higher education.

There are several ways to enter higher education in Brazil:

(1) Traditional “vestibular” (entrance exam): this selection process is carried out through a presential examination with questions related to the knowledge acquired in secondary education, as well as an essay test in some cases. The exam is scheduled by the university and may even have more than one phase. The traditional vestibular is used by public and private institutions and can be applied once or twice a year.

(2) in the scheduled “vestibular”, which follows the same model as the traditional “vestibular”, the candidate is however the one who chooses the day and time to realize the exam, according to the possibilities offered by the university. This type of examination is offered by some private higher education institutions.

(3) The serial “vestibular”, in which the exams are sequential and applied in the last three years of secondary school period. This may allow the person to become an undergraduate student in a higher education institution without going through the traditional “vestibular”.

(4) the National Secondary School Exam (Exame Nacional do Ensino Médio - ENEM) is considered as a “vestibular” and it is applied every year. Unlike the traditional entrance exam, it is not necessary to choose in advance the undergraduate programme in which the student wishes to enrol. This choice happens only after the student receives his/her results of ENEM, with which the student will know if he/she qualifies to start a specific graduation course in a public higher education institution. The ENEM's results may also qualify the student to receive a scholarship or educational grant to study in a private higher education institution.

In conclusion, higher education in Brazil is accessible on the basis of individual capacity assessed by admission exams focused on the knowledge acquired by the end of secondary education. There are current financial incentives, scholarships programs and affirmative actions that provide access to low and middle-income students to higher education.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

There are student aid programmes for low-income students since 1976, with an increase in scale and scope during the 2000s.

From 1976 to 1999, the "Educational Credit Programme" (Programa Crédito Educativo) financed tuition fees and other expenses for low-income students enrolled in higher education institutions (HEIs). In 1999, the "Student Finance Programme" (Programa de Financiamento Estudantil - FIES) replaced the "Educational Credit Programme" (Programa Crédito Educativo), having considerably expanded (ten times more) its funding from 2010 onwards. Since 2018, FIES has offered 100 000 new loan contracts every year.

With the University for All Programme (Programa Universidade para Todos - ProUni), launched in 2004, private HEIs exempt tuition fees for low-income and disabled students in exchange for tax exemptions by the government. A limited number of grants covering subsistence costs are also part of the federal support for students registered in private HEIs.

Providing subsistence grant for higher education students in public institutions, which are free of charge, is also a current federal government policy, as well as a policy of state governments for the students in public universities under their own administrative and financial responsibility. In 2018, the total grants for students enrolled in public federal HEIs accounted for BRL 1,3 billion and benefited over 330 000 students.

In total, government support for students enrolled in private HEIs benefits almost 25% of the total students enrolled in these institutions. There are also student loans offered by the private HEIs themselves or by other private agents, including the limited assistance in the form of housing, transport, food and study materials. When added, 50% of the 6,4 million students in private HEIs benefit from some type of assistance in 2018. In the public HEIs, which are free of charge, 18% received it.

As far as international students are concerned, Brazil is a center of higher education in Latin America, especially at postgraduate level - even though the country is not as attractive as the United States, Canada, Europe or Australia. Less than 20 000 foreign students are registered in HEIs in Brazil - 0.2% of the total enrolment. Two federal higher education institutions are particularly receptive to international students due to their international vocation: the Federal University of Latin American Integration (Unila) and the University of International Integration of the Afro-Brazilian Lusophony (Unilab). In general, Brazilian institutions are receptive to foreign students (in postgraduate studies, a growing number of programmes are accepting theses and dissertations written in a foreign language). There are assistance initiatives for foreign students, but on a small scale. The federal budget for assistance to foreign students is approximately BRL 6 million per year.

It's worth mentioning that students in vocational education and training - (Ensino e Formação Profissional - EFP) may also benefit from exemption from tuition fees and other types of financial aid that are available under specific policies and regulations. Government support focuses either on the expansion of the EFP system itself and on different forms of support for its students. Their EFP programmes, in private or public institutions, may give degrees called "technological degrees", which are higher education level degrees, in addition to post-secondary certificates after courses for students enrolled in secondary school and courses that do not require specific prior education.

2. Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☒ Provision of literacy programmes

☒ Provision of appropriate learning and life-skills programmes

☒ Provision of free of charge learning opportunities

☒ Provision of flexible learning pathways

☒ Provision of professional training and qualifications

☐ Other:

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- Please elaborate further on the measures taken:

The educational offer for all those who have not had access to education at the proper age is assured as a duty of the State.

Examples of initiative:

Support Programme for the Learning Systems covering Youth and Adult Education (Programa de Apoio aos Sistemas de Ensino para Atendimento à Educação de Jovens e Adultos - PEJA): a programme that transfers federal resources to states and municipalities for the creation and maintenance of classes focused on youth and adult education (Educação de Jovens e Adultos - EJA).

In 2017, new editions were launched for the National Programme for Youth Inclusion (Programa Nacional de Inclusão de Jovens - PROJOVEM): supplementary action responsible for raising the level of schooling in basic education, which integrates professional qualification and the development of citizenship. It is aimed at the educational and social inclusion of young people between the ages of 18 and 29, who can read and write but have not completed primary school. The 2017 edition of “*Projovem Urbano*” was joined by 38 federated entities, comprising 13 states and 25 municipalities, and “*Projovem Campo*”, 56 federated entities, comprising 11 states and 45 municipalities. It was offered approximately 53 000 vacancies under the Programme.

National Programme for the Integration of Vocational Education with Basic Education in the Youth and Adult Education Modality (Programa Nacional de Integração da Educação Profissional com a Educação Básica na Modalidade de Educação de Jovens e Adultos - PROEJA) embodies: continued training of education professionals; offer of youth and adults education courses integrated to professional qualification; production of pedagogical material; monitoring of permanence and drop-outs; research and innovation; and the organization of five regional meetings on the matter.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The interactive platform of the Direct Money in School Programme (Programa Dinheiro Direto na Escola - PDDE): a management tool that can assist schools in their planning and monitoring actions in relation to the programmes implemented by the departments of Ministry of Education, which opt for direct financial transfer to school through PDDE's platform.

In 2016, the programme was used by 120 300 schools, benefiting 32,9 million students. In 2017, 127 400 schools were covered, benefiting 34,9 million students. In 2018, resources were transferred to 126 200 basic education schools, benefiting 35,3 million students. In 2019 the PDDE reached more than 114 000 schools and 32,8 million students.

In 2018, the Ministry of Education established that the educational resources for basic education produced with financial resources from the Ministry should always be open educational resources and, when digital, they have to be available on public websites. This action extends the right of access to free and quality materials for teachers and students.

In addition, the Connected Education Innovation Programme (Programa de Inovação Educação Conectada) promotes general access to high-speed internet and the pedagogical use of digital technologies in basic education. In 2018, more than 23 000 schools were covered by the programme, benefiting about 12 million students. In 2019, 70 000 urban schools and 8 000 rural schools were covered, leading to internet connections for more than 30 million students.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

☒ Initial training and continuous professional development is provided

☒ Minimum standards and qualifications are required for the teaching profession

☒ Measures taken to strengthen the social status and attractiveness of the teaching profession

☐ Performance monitoring systems

☐ Measures taken to increase women in leadership positions in education

☐ Other:

- Please briefly elaborate further on the measures taken:

According to target 17 of the National Education Plan (Plano Nacional de Educação – PNE), Law nº13.005/14, the government seeks to enhance value and recognition of the teaching professionals in the networks of public basic education, equating their average income with that of other professionals with equivalent school education. In 2016, the teaching professionals in public education with a higher education degree earned, in average, 71.5% of the monthly income of other professionals with the same study level. In 2017, this ratio was of 74,9%. In 2018, it raised to 76,5%. In 2019 it reached a 78,1%.

To be a teacher in Brazil, it is necessary to meet some of the requirements provided in the National Education Guidelines and Framework Law (Lei de Diretrizes e Bases da Educação - LDB - Law nº 9.394/1996). In order to be teacher in the last years of primary education and in the whole secondary education the professional must have a higher education degree oriented for the teaching activity (which are called licenciatura) in fields of Pedagogy, Chemistry, Physics, Mathematics, Biological Sciences, Geography or Languages.

The Pedagogy higher education degree enable teachers to act in the early childhood education (nurseries/day care, pre-schools) and in the initial years of primary school. The teacher is responsible for delivering the entire curriculum at this stages. Pedagogy higher education courses also train professionals to work with the management aspects within the school system.

For the early childhood education and in the first years of primary education, it is also admitted professionals with technical training in teaching (Curso Magistério/Ensino Normal), which are not considered higher education degrees.

Bachelor degrees (which differs from licenciatura) do not enable the professionals to teach. In order to act as a teacher in basic education, the holder of a bachelor degree needs pass through a complementing pedagogical course.

To be a teacher in higher education, the professional must have, at least, a Postgraduate level degree *Lato Sensu* (specialization). In addition, professionals with notorious knowledge, recognized by the education system, can also teach the content of their expertise in the technical and vocational part of a higher education course programme.

In 2019, its was established the Common National Basis for the Initial Teacher Training for Basic Education (Base Nacional Comum para a Formação Inicial de Professores da Educação Básica - BNC Formação). This basis has established the general skills that every student should develop throughout the pedagogical courses and “licenciaturas” for their career as teaching professionals.

Concerning the continuing training of education professionals, in 2017, the Brazilian Ministry of Education (MEC) created the AVAMEC platform (<http://avamec.mec.gov.br/>), a collaborative virtual learning environment that allows the design, administration and development of various types of training actions (such as distance learning courses, complements to presencial courses, research projects, collaborative projects, and other various forms of distance educational support to the teaching-learning process). In this platform several continuing education programmes are available for teachers and other basic education professionals. The courses can be developed by various partners, including the municipal and state education departments. They are free of charge and open to anyone interested.

In 2019, the Ministry of Education, in collaboration with state and municipal association of education managers (Consed and Undime, respectively), developed the National Commitment for Basic Education, which contains a set of actions to be implemented in coordination with the federated entities. Stand out among them the “Projeto Forma Brasil - Docente”, which aims at elaborating and implementing programmes to increase the quality of initial teacher training, as well as promoting support to the continued training for teachers. In respect to the continuous training, the project plans to: conduct analysis of the teacher training needs; give technical support to teacher training through digital platforms, considering the recent regulatory frameworks, as well as the research and evidence on learning in school environment; and implement a mentorship programme for teachers aiming at improving their teaching practice and students learning.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☐ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

¹¹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

Human rights and fundamental freedoms are contemplated by the Common National Curricular Basis (Base Nacional Comum Curricular - BNCC) adopted in December 2018. The BNCC addresses issues such as human rights and fight against discrimination. Such concepts are addressed in all parts of the of the early childhood education, primary and secondary education curricula. Among the 10 general competencies envisaged by the BNCC, at least 5 are closely related to respect for human rights and fundamental freedoms:

(...)

6. To value the diversity of knowledge and cultural experiences and to appropriate from knowledge and experiences that enable to understand the labor specific relations, and to make choices in line with the exercise of citizenship and with one's project of life, with freedom, autonomy, critical conscience and responsibility.

7. To argue on the basis of facts, data and reliable information in order to formulate, negotiate and defend ideas, points of view and common decisions that respect and promote human rights, socio-environmental awareness and responsible consumption at the local, regional and global levels, with ethical positioning regarding the care of oneself, others and the planet.

8. Having self-knowledge, self-appreciation and to take care of one's physical and emotional health, understanding oneself within human diversity and recognizing one's emotions and those of others, with self-criticism and capacity to deal with them.

9. To exercise empathy, dialogue, conflict resolution and cooperation, respecting oneself and promoting the respect for others and for the human rights, welcoming and valuing the diversity of individuals and social groups, their knowledge, identities, cultures and potentialities, without prejudice of any kind.

10. To act on a personal and collective basis with autonomy, responsibility, flexibility, resilience and determination, taking decisions based on ethical, democratic, inclusive, sustainable and solidarity-based principles.

It is important to underline that by including these principles in its general competencies, the BNCC corroborates the recommendations expressed in the National Guidelines on Human Rights Education, given by Resolution n° 01/2012 of the National Council of Education. It should be noted that states and municipalities are included in the implementation cycle of the BNCC in partnership with the Union.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☐

- Please provide a brief description:

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- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

☐

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

¹² See: Article/Paragraph 1(1).

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

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2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Regarding the "Rights of refugees and migrants", the Law n° 13.445/2017 guarantees "equal and free access of migrants to services, programmes and social benefits, public goods, education, comprehensive public legal assistance, work, housing, banking service and social security", without discrimination by reason of nationality and migratory condition.

It is also important to highlight that Law n° 9474/1997, which defines the mechanisms for the implementation of the Refugee Statute, in its Article 44, determines that "the recognition of certificates and diplomas, the requirements for obtaining resident status and entry into academic institutions at all levels should be facilitated, taking into account the unfavourable situation experienced by refugees.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

